

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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EDISON N. GBOR, and JOEANN HUTCHINSON,

Plaintiffs, **SECOND AMENDED
COMPLAINT**

-against-

11-cv-2824-ERK-RML

THE CITY OF NEW YORK; SGT. ANDREW
HILLERY; SGT. BREWSTER; SGT. LIPPERT;
DET. ANDREW FAGO; DET. DELPRETE; DET.
FAZIO; DET. COGNATO; DET. MALPESO; and
DET. RIVAS; DET. MEIGS; DET. SANCHEZ; and
DET. SPOSITO; the individual defendant(s)
sued individually and in their official
capacities,

ECF Case

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiffs seeks relief for the violation of plaintiffs' rights secured by 42 U.S.C. §§ 1983; and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. Plaintiffs' claims arise from an incident that arose on or about August 27, 2010. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiffs to, among other things, excessive force, false arrest, unlawful search and seizure, conspiracy, malicious prosecution, fabricated evidence, and implementation and continuation of an unlawful municipal policy, practice, and

custom. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. §§ 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983, and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper here pursuant to 28 U.S.C. § 1391 because some of the acts in question occurred in Richmond County, and the City of New York is subject to personal jurisdiction in the Eastern District of New York.

PARTIES

5. Plaintiff Edison N. Gbor is a resident of the State of New York, Richmond County.

6. Plaintiff Joeann Hutchinson is a resident of the State of New York, Richmond County.

7. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

8. Defendant Sgt. Brewster is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

9. Defendant Sgt. Andrew Hillery is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", assigned Tax # 925457, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

10. Defendant Sgt. Lippert is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

11. Defendant Det. Andrew Fago is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", assigned Tax # 928265, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

12. Defendant Det. Delprete is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

13. Defendant Det. Fazio is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein

14. Defendant Det. Cognato is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein

15. Defendant Det. Malpeso is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein

16. Defendant Det. Rivas is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein

17. Defendant Det. Meigs is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein

18. Defendant Det. Sanchez is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located

in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein

19. Defendant Det. Sposito is a New York City Police Officer, employed with the 120th Precinct and/or "NBSI", located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein

20. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

21. On August 27, 2010, at and in the vicinity of 55 Bowen Street, Apt. # 510, Staten Island, New York, and the 120th Precinct, Staten Island, New York, several police officers operating from the 120th Precinct and "NBSI", located in Richmond County, New York, including upon information and belief, defendants Sgt. Andrew Hillery, Sgt. Brewster, Sgt. Lippert, Det. Andrew Fago, Det. Delprete, Det. Fazio, Det. Cognato, Det. Malpeso, Det. Rivas, Det. Meigs, Det. Sanchez, and Det. Sposito, at times acting in concert and at times acting independently, committed the following illegal acts against plaintiffs.

22. On August 27, 2010, at approximately 5:00 a.m., at and in the vicinity of 55 Bowen Street, Apt. # 510, Staten Island, New York ("the apartment"), defendants Sgt. Andrew Hillery, Sgt. Brewster, Sgt. Lippert, Det. Andrew Fago, Det.

Delprete, Det. Fazio, Det. Cognato, Det. Malpeso, Det. Rivas, Det. Meigs, Det. Sanchez, and Det. Sposito, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime unlawfully entered the apartment.

23. The defendants, including defendants Sgt. Andrew Hillery, Sgt. Brewster, Sgt. Lippert, Det. Andrew Fago, Det. Delprete, Det. Fazio, Det. Cognato, Det. Malpeso, Det. Rivas, Det. Meigs, Det. Sanchez, and Det. Sposito, broke through the door of the apartment.

24. Joeann's mother rented the apartment.

25. Plaintiffs were asleep at this time.

26. Edison was only dressed in shorts.

27. Joeann was dressed in her underwear.

28. Joeann's mother was also in the apartment.

29. The defendants held flashlights and pointed firearms at plaintiffs and Joeann's mother.

30. Once defendants entered the apartment, plaintiffs and Joeann's mother were not free to disregard the defendants' questions, walk away or leave the scene.

31. Once Edison saw the defendants, he immediately got down on his bed.

32. Nevertheless, the defendants, including defendants Sgt. Andrew Hillery, Sgt. Brewster, Sgt. Lippert, Det. Andrew Fago, Det. Delprete, Det. Fazio, Det. Cognato, Det. Malpeso, Det. Rivas, Det. Meigs, Det. Sanchez, and Det. Sposito, maliciously, gratuitously, and unnecessarily grabbed Edison and held him down, violently wrenched and twisted his arms, placed excessively tight handcuffs on Edison's wrists, and held him down in the bed.

33. Joeann heard the defendants enter the apartment. Not knowing what was happening, she cowered in fear.

34. Male officers came into in Joeann's room, and she asked to be allowed to get dressed.

35. The defendants pointed weapons at Joeann and yelled at her.

36. After several minutes a female officer came into the bedroom and Joeann was allowed to put on clothes.

37. Then the female officer placed handcuffs on her. The handcuffs were excessively tight, and repeated requests to loosen them were ignored.

38. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs, since plaintiffs were unarmed, compliant, and did not resist arrest.

39. Plaintiffs were physically injured as a result of the excessive use of force, and suffered marks to their bodies and pain.

40. Those defendants who did not touch the plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

41. After the plaintiffs and Joeann's mother were placed in handcuffs, the defendants threatened to destroy the apartment if they did not tell them where the "drugs" were located.

42. The defendants also threatened to bring a canine unit into the apartment.

43. The plaintiffs and Joeann's mother told the defendants that there were no drugs in the apartment.

44. The defendants searched the apartment, ransacking it unnecessarily.

45. The defendants found no controlled substance, contraband, or weapons in the apartment or on any of the occupants, including the plaintiffs.

46. Instead of freeing the plaintiffs and Joeann's mother and leaving the apartment, the defendants, defendants Sgt. Andrew Hillery, Sgt. Brewster, Sgt. Lippert, Det. Andrew Fago, Det. Delprete, Det. Fazio, Det. Cognato, Det. Malpeso,

Det. Rivas, Det. Meigs, Det. Sanchez, and Det. Sposito, falsely claimed that they found controlled substances in the apartment.

47. The defendants took the plaintiffs and Joeann's mother outside the apartment to a police van.

48. One defendant asked Edison if he was an athlete because he did not feel like running.

49. The defendants put plaintiffs and Joeann's mother in a van with other arrestees.

50. The defendants drove plaintiffs and Joeann's mother to the 120th Precinct for arrest processing.

51. One person vomited in the van during the ride.

52. As the arrestees, including the plaintiffs, were leaving the van, Edison asked a defendant if he could assist his grandmother and another female arrestee from the van.

53. The defendant said no, and Edison asked what if this was your mother, and the defendant said my mother would not be involved in this situation.

54. The defendants processed plaintiffs arrest at the 120th Precinct.

55. Edison was given Arrest # S10609772.

56. Joeann was given Arrest # S10609771.

57. In order to cover up that their was no basis for their arrest, defendants, including Det. Fago, Sgt. Brewster,

and Sgt. Hillery, pursuant to a conspiracy, falsely and maliciously told the Richmond County District Attorney's Office that plaintiffs had committed various crimes, including violations of N.Y.S. P.L. §§ 220.06 01, 220.03, 221.10 01, and 221.05, by stating that they were in possession of a controlled substance and marijuana.

58. However, the Richmond County District Attorney's Office declined to prosecute plaintiffs.

59. Plaintiffs were released on or about August 27, 2010.

60. The criminal case terminated in plaintiffs' favor.

61. The criminal case against Joeann's mother was also dismissed, terminating in her favor.

62. The aforesaid events are not an isolated incident. Defendant City of New York is aware (from lawsuits, notices of claim, internal reviews, and complaints) that many of the NYPD's officers are insufficiently trained on the proper way to execute warrants, search for contraband, investigate incident, determine if probable cause exists, use force, respond to complaints about their conduct, and treat innocent and/or uninvolved individuals who are at an incident scene and/or investigation location.

63. Defendant City of New York is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, City of New York has failed to take corrective action. This failure caused the defendants in the present case to injure plaintiffs, violate the law, and violate the plaintiffs' rights.

64. Moreover, defendant City of New York was aware prior to the incident that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed. Despite such notice, defendant has retained these individuals, and failed to adequately train and supervise them.

65. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop and/or arrest innocent individuals, based on pretexts, in order to meet productivity goals, in minority and low income neighborhoods, such as occurred here.

66. At all times defendant City of New York, by the NYPD, and its agents, servants and/or employees, carelessly, and recklessly trained the individual defendants for the position of police officers.

67. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees, carelessly, and recklessly supervised, controlled, managed, maintained and inspected the activities of the individual defendants.

68. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees caused, permitted and allowed the individual defendants to act in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

69. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees carelessly and recklessly retained in its employ, the individual defendants, who were clearly unfit for their positions, who acted in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

70. The occurrence(s) and injuries sustained by plaintiffs, were caused solely by, and as a result of the malicious, reckless, and/or intentional conduct of the defendant City of New York and its agents, servants and/or employees, as set forth above, without provocation on the part of the plaintiffs contributing thereto, specifically, the intentional and reckless manner in which said defendant hired, trained,

supervised, controlled, managed, maintained, inspected and retained the individual defendants.

71. The individual defendants acted in concert committing the above-described illegal acts toward the plaintiffs.

72. Plaintiffs did not resist arrest at any time during the above-described incident.

73. Plaintiffs did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

74. The individual defendants did not observe plaintiffs violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

75. At no time prior to, during or after the above-described incident were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiffs had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above-described incident.

76. Defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights.

77. As a direct and proximate result of defendants' actions plaintiffs experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

78. Plaintiffs are entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiffs' rights.

FIRST CLAIM

(FALSE ARREST & UNLAWFUL SEARCH AND SEIZURE)

79. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

80. The individual defendants falsely arrested plaintiffs without consent, an arrest warrant, a lawful search

warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime.

81. Accordingly, the defendants are liable to plaintiffs for false arrest and unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(EXCESSIVE FORCE)

82. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

83. The individual defendants' use of force upon plaintiffs, as described herein, and the individual defendants' failure to intervene, was objectively unreasonable and caused plaintiffs pain and injury.

84. Accordingly, the defendants are liable to plaintiffs for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

THIRD CLAIM

(FAILURE TO SUPERVISE)

85. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

86. The supervisor defendants are liable to plaintiffs because they supervised the subordinate individual defendants concerning above-mentioned unlawful acts against plaintiffs, and approved their unlawful actions.

FOURTH CLAIM

(MALICIOUS PROSECUTION)

87. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

88. The defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against plaintiffs by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged plaintiffs had committed various crimes.

89. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

90. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution.

91. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiffs.

92. The criminal prosecution was dismissed,

terminating in plaintiffs favor.

FIFTH CLAIM

(FABRICATED EVIDENCE)

93. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

94. The defendants are liable to plaintiffs because they intentionally conspired to fabricate evidence against them, depriving them of liberty without due process of law.

95. In addition, the defendants used and presented the fabricated evidence to prosecute plaintiffs.

96. Further, the defendants were on notice that creating fabricated evidence is a clear violation of law because it well established that police officer who knowingly use false evidence to obtain a conviction act unconstitutionally.

97. Furthermore, the defendants violated the law by making false statements of fact in a certification for determination of probable cause and/or a conviction, because they performed a function of a complaining witness.

SIXTH CLAIM

(FEDERAL MONELL CLAIM)

98. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

99. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

100. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

101. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

102. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop and/or arrest innocent individuals, based on pretexts, in order to meet productivity goals, in minority and low-income neighborhoods.

103. In addition, the following are municipal policies, practices and customs: (a) arresting innocent individuals, based on a pretext; (b) using excessive force against individuals; and (c) fabricating evidence against individuals.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
October 31, 2011

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